

SPI 387: Education Policy

Week 7 Precept

Jenck's (1988) Five Conceptions of Justice

1. Democratic equality
2. Moralistic justice
3. Weak humane justice
4. Strong humane justice
5. Utilitarianism

Democratic Equality

Democratic Equality

“Democratic equality requires Ms. Higgins to **give everyone equal time and attention**, regardless of how well they read, how hard they try, how deprived they have been in the past, what they want, or how much they or others will benefit.”

Moralistic Justice

Moralistic Justice

“Moralistic justice requires Ms. Higgins to **reward virtue and punish vice**. In the classroom, **virtue involves effort**, and moralistic justice means rewarding those who make the most effort to learn whatever Ms. Higgins is trying to teach.”

Weak Humane Justice

Weak Humane Justice

“[Weak] humane justice only requires Ms. Higgins to compensate those who have been shortchanged at home or in their earlier schooling, not those who have been short changed genetically.”

Strong Humane Justice

Strong Humane Justice

“[Strong] humane justice requires Ms. Higgins to **compensate those who have been shortchanged in any way in the past, including genetically.** In practice, this means giving the most attention to the worst readers, regardless of the reasons for their illiteracy.”

Utilitarianism

Utilitarianism

“Most utilitarians assume that the best way to get individuals to do what we want is to make every activity, including education, a race for unequal rewards. **Equal opportunity means that such races must be open to all, run on a level field, and judged solely on the basis of performance. Thus, insofar as Ms. Higgins's attention is a prize, it should go to the best readers.**”

Now Onto the Worksheet...

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Note: please write down everyone's names in the group on the piece of paper. This will serve as your attendance taking!

1. Review the list of 5th grade students and scores at [this link](#) and identify no more than six students for a special tutoring group. Download the spreadsheet to your computer. Make the following assumptions:
 - a. The school is evaluated, in part, on the percentage of students passing the state test. The cut-point for scoring proficient (i.e. "passing") is 70.
 - b. The benchmark test is given in December, and the state test is at the end of May.
 - c. The tutoring will be effective at improving students' test score performance and increasing their grades, but it is not known how much it will affect student progress, test scores, or overall child well-being.
 - d. Other students in the class will know who is, and who isn't, receiving tutoring.
 - e. You unfortunately cannot change the premise. That is, "get more funding to tutor everyone" or "fight back against the policy" are outside of the confines of this simulation.
2. After you have identified the students, consider these questions for discussion with your group, and jot down responses with the following sections (bullet points are okay!). You'll have about 10 minutes to do this:
 - a. *Students Chosen*: Which students did you choose, and what were their scores?
 - b. *Decision Criteria*: How did you decide on these students?
 - c. *Tradeoffs*: What tradeoffs did you have to make?
 - d. *Other Information Requested*: What else would you like to know about the students [or the school, scores, or test] to make your decision?
 - e. *Justice Framework*: How does your decision relate to the [conceptions of justice](#) proposed by Jencks? In other words, does your decision reflect an endorsement of one or more of these principles? Or, do you propose an alternate framework?
 - i. equality
 - ii. moralistic justice
 - iii. weak humane justice
 - iv. strong humane justice
 - v. utilitarianism
3. After you are done writing, now look at [this version](#) of the list. Download the spreadsheet and assess your list and amend it as you see fit. You'll turn in this document both to me.